

Opinion of the Court

and as the representative of the President.” Participation of the Vice President in the Affairs of the Executive Branch, 1 Supp. Op. OLC 214, 220 (1961). President Woodrow Wilson’s Vice President, for instance, “presided over a few cabinet meetings while Wilson was in France negotiating” the Treaty of Versailles after World War I. H. Relyea, *The Law: The Executive Office of the Vice President: Constitutional and Legal Considerations*, 40 *Presidential Studies Q.* 327, 328 (2010). During President Franklin Roosevelt’s administration, the Vice President “became a regular participant in cabinet deliberations—a practice that was continued by each succeeding president.” *Ibid.* And when President Dwight Eisenhower “suffered three major illnesses while in office . . . Vice President Richard Nixon consulted with the Cabinet and developed a procedure for relaying important matters to the President.” *Presidential Succession and Delegation in Case of Disability*, 5 Op. OLC 91, 102 (1981). At the President’s discretion, “the Vice President may engage in activities ranging into the highest levels of diplomacy and negotiation and may do so anywhere in the world.” 1 Supp. Op. OLC, at 220. Domestically, he may act as the President’s delegate to perform any duties “co-extensive with the scope of the President’s power of delegation.” *Ibid.*

Whenever the President and Vice President discuss their official responsibilities, they engage in official conduct. Presiding over the January 6 certification proceeding at which Members of Congress count the electoral votes is a constitutional and statutory duty of the Vice President. Art. II, § 1, cl. 3; Amdt. 12; 3 U. S. C. § 15. The indictment’s allegations that Trump attempted to pressure the Vice President to take particular acts in connection with his role at the certification proceeding thus involve official conduct, and Trump is at least presumptively immune from prosecution for such conduct.

The question then becomes whether that presumption of immunity is rebutted under the circumstances. When the